

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 09/11/2026

ALL APPEARANCES WILL BE BY ZOOM.

The tentative ruling will become the Court's ruling unless, by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties

EMAIL THE DEPARTMENT at dept32@contracosta.courts.ca.gov to request argument and
SPECIFY THE ISSUES to be argued.

Counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her intention to appear and of the issues to be argued.

Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

CourtCall will **NOT** be used by D32.

Zoom is approved for all hearings except Issue Conferences and Trials.

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Submission of Orders After Hearing in Department 32 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Zoom hearing information

[https://contracosta-courts-
ca.zoomgov.com/j/1613360625?pwd=pSvwmR75t9Q2H5zOgagi9rbG4xeTUM.1](https://contracosta-courts-ca.zoomgov.com/j/1613360625?pwd=pSvwmR75t9Q2H5zOgagi9rbG4xeTUM.1)

Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C23-01988
CASE NAME: MATTHEW PARRY VS. GELCO FLEET TRUST
HEARING ON SUMMARY MOTION CONT'D FROM 8/21/26 PER TR
FILED BY: MERCEDES-BENZ USA, LLC

TENTATIVE RULING:

Defendant Mercedes-Benz USA, LLC's motion for summary judgment is **denied**. Their motion for summary adjudication is also **denied**.

Plaintiff sued various defendants for negligence and products liability due to injuries he suffered from a Mercedes-Benz sprinter van.

Plaintiff drove the van up a steep driveway in Orinda to deliver a package. (Undisputed Fact 2, 5.) He parked the van on a 28-31% slope and exited the van. (Undisputed Fact 4.) The van was

stationary when Plaintiff exited the van. (Undisputed fact 6.) Plaintiff testified that he put the van in park and he engaged the emergency brake before exiting. (Sanderson dec. ex. C: Parry Depo. 91:3-24.) Plaintiff also testified that the van automatically put itself in park when the driver's door opened. (Sanderson dec. ex. C: Parry Depo. 91:16-19; 93:6-9.) Plaintiff was outside the van when the van then began to move backwards. (Undisputed Fact 8.) Plaintiff attempted to re-enter the van and was injured in the process. (Undisputed Fact 9.) Had Plaintiff not attempted to re-enter the van when it began moving he would not have been injured. (Facts 9 and 10.) Plaintiff disputes the phrasing of the statement, but not the fact that if Plaintiff had stayed in one place when the van started moving he would not have been injured by the van.)

Plaintiff sued Defendant for negligence and products liability due to alleged defects in the braking system of the van. Defendant brings this motion for summary judgment, or alternatively summary adjudication of its tenth and twelfth affirmative defenses for superseding act and misuse.

Standard of Review

A defendant meets its burden on a motion for summary judgment by showing either that plaintiff's claims have no merit or that there is a complete defense to the claims. (Code of Civil Procedure § 437c(p)(2).) A defendant can show this by providing factually devoid discovery responses from plaintiff or by providing admissible evidence that negates Plaintiff's claim. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854.)

Once a defendant has met its burden, the motion will be granted unless the plaintiff can show at least one triable issue of material fact. (*Aguilar, supra*, 25 Cal.4th at p.843.) "In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom, and must view such evidence and such inferences, in the light most favorable to the opposing party." (*Aguilar, supra*, 25 Cal.4th at p. 843 (internal citations and quotations omitted); see also, Code of Civ. Proc. § 437c(c).)

Summary Judgment: Causation

Defendant moves for summary judgment, arguing that there is a lack of causation here. In order to meet its initial burden, Defendant must present sufficient evidence that shows a lack of causation.

"As with other tort claims, the plaintiff must show the defect in the product was a legal or proximate cause of the plaintiff's injury. [Citations.]" (*Shih v. Starbucks Corp.* (2020) 53 Cal.App.5th 1063, 1067.) "'Ordinarily, proximate cause is a question of fact.... Nevertheless, where the facts are such that the only reasonable conclusion is an absence of causation, the question is one of law, not of fact.'" (*Modisette v. Apple Inc.* (2018) 30 Cal.App.5th 136, 152.) For proximate cause, "[t]he question is whether there is a sufficient connection between the risks created by defendants' conduct and the injury [] suffered to hold defendants responsible." (*Novak v. Continental Tire North America* (2018) 22

Cal.App.5th 189, 196.)

Defendant argues that there is no proximate causation here because Plaintiff's injury is too removed from any defect in the van and instead resulted from Plaintiff's attempt to re-enter the van. Defendant relies primarily on *Shih* and *Modisette*.

In *Shih* the plaintiff claimed that Starbucks provided her with a defective cup because it was filled to the top with hot tea and no sleeve was provided. Plaintiff carried the hot drink to a table and was later burned by the hot liquid when she attempted to lean back in her chair, lost her balance, grabbed the table and knocked her hot cup of tea onto herself. The court found that the events leading to the tea spill were too remote from the alleged defects in the cup for plaintiff to prove proximate causation. (*Shih, supra*, 53 Cal.App.5th at 1068-69.)

In *Modisette* the driver of a car was driving while using FaceTime on his Apple iPhone and crashed into Plaintiffs' vehicle. Plaintiffs argued that Apple should have locked its iPhone from allowing FaceTime while driving. The Court disagreed, finding that Apple's failure to disable FaceTime while driving did nothing more than create the condition that made the plaintiffs' injuries possible. The court also found that a reasonable juror would not identify Apple's conduct as being actually responsible for plaintiffs' harm. (*Modisette, supra*, 30 Cal.App.5th at 152-154.)

Assuming that Defendant has met its initial burden, there are triable issues of material fact here. Defendant did not include an undisputed fact showing the alleged defect in the van, however, the first amended complaint alleges that the van's braking system was defective. (FAC p. 5.) The evidence also shows that Plaintiff put the van into park before exiting. Finally, there is a triable issue as to how fast the van was moving when Plaintiff attempted to reenter it to stop it from moving. (Disputed fact 9: Walker dec. ¶17 [van was moving at 10pmh]; Stodola dec. ¶11 [van was moving at 4.7-4.8 mph].) Based upon these facts, a reasonable juror could find that Defendant's conduct (here the defect braking system in the van) was a cause of Plaintiff's injuries.

Both *Shih* and *Modisette* are distinguishable on their facts. In *Shih*, the temperature of the beverage and lack of a sleeve had no connection to Plaintiff's losing her balance, grabbing the table and spilling tea on herself. In *Modisette*, the driver's irresponsible choice to use Facetime while driving was the direct cause of injury. Here, there is a more direct connection between Plaintiff's injury and the van's defective brakes. A reasonable jury could find that the Plaintiff would not have tried to re-enter the moving van had the braking system been working properly. A jury could find that a person trying to re-enter a rolling vehicle may be acting reasonably in order to prevent potential property damage and potential injury to others. The court cannot agree that Defendants have established there is no proximate causation as a matter of law.

The motion for summary judgment is **denied**.

Summary Adjudication: Superseding Act and Misuse of Van

In Defendant's tenth affirmative defense, it alleged that Plaintiff's injury was caused by the acts of other persons or entities not under Defendant's control and that conduct was the superseding cause of Plaintiff's actual damage.

In Defendant's twelfth affirmative defense, it alleges that the van was not being used in a normal, foreseeable and intended manner and such misuse was the cause of the incident.

" 'A defendant moving for summary judgment based upon an affirmative defense, as here, bears an overall burden of persuasion that there is a complete defense to the plaintiff's action ... ' [Citation.] In other words, the defendant must persuade the court there is no triable issue of fact as to that defense. [Citation.] In meeting the burden of persuasion, the defendant 'bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact' as to the defense. [Citation.]" (*Fazio v. Fairbanks Ranch Country Club* (2015) 233 Cal.App.4th 1053, 1057.) Summary adjudication as to an affirmative defense can only be granted if it completely disposes of that affirmative defense. (Code of Civil Procedure §437c(f)(1).)

"[T]he defense of 'superseding cause,' which absolves a tortfeasor, even though his conduct *was* a substantial contributing factor, when an independent event intervenes in the chain of causation, producing harm of a kind and degree so far beyond the risk the original tortfeasor should have foreseen that the law deems it unfair to hold him responsible. [Citations.]" (*Soule v. General Motors Corp.* (1994) 8 Cal.4th 548, 573, fn.9.) "Whether an intervening force is a superseding cause or not generally presents a question of fact, but becomes a matter of law where only one reasonable conclusion may be reached." (*Chanda v. Federal Home Loans Corp.* (2013) 215 Cal.App.4th 746, 756.)

"Product misuse, an affirmative defense, is a superseding cause of injury that absolves a tortfeasor of his or her own wrongful conduct only when the misuse was 'so highly extraordinary as to be unforeseeable.'" [Citations.] 'However, foreseeability is a question for the jury unless undisputed facts leave no room for a reasonable difference of opinion.' [Citation.]" (*Chavez v. Glock, Inc.* (2012) 207 Cal.App.4th 1283, 1308; see also, CACI no. 1245.) " [P]roduct misuse may serve as a complete defense when the misuse 'was so unforeseeable that it should be deemed the sole or superseding cause.' [Citation.]" (*Perez v. VAS S.p.A.* (2010) 188 Cal.App.4th 658, 685.)

Here, there is no evidence of a third party engaging in a superseding act. The alleged superseding act is the same as the alleged misuse of the van, which is that Plaintiff attempted to re-enter the van after it was moving. Thus, the two affirmative defenses require essentially the same analysis. The question here is whether Plaintiff's actions to re-enter a van when it started rolling backwards down a hill is so highly extraordinary as to be unforeseeable.

Defendant relies on Dorris' declaration, an expert in industrial and systems engineering, that Plaintiff's actions were not reasonably foreseeable. Dorris declares Plaintiff's attempt to re-enter the

van was an extraordinary misuse of the van that was not reasonably foreseeable to Defendant. (Dorris dec. ¶18.)

Plaintiff provides a declaration for McGehee, an expert in industrial and systems engineering, where he explains that “drivers attempting to re-enter a vehicle after it has unexpectedly begun to move has been a persistent and well-known problem for over 25 years.” (McGee dec. ¶10(a).) He also states that in this case, Plaintiff’s action was foreseeable and predicable human behavior. (McGee dec. ¶54.) Thus, there is a triable issue of material fact as to foreseeability based upon the competing expert declarations.

The motion for summary adjudication as to the tenth and twelfth affirmative defenses is **denied**.

Rulings on Evidence

Plaintiff’s requests for judicial notice are granted.

Plaintiff’s objection to Dorris’ declaration paragraph 18 is Overruled.

The Court rules on Defendant’s objections to evidence as follows:

Stodola Declaration:

1. Sustained.
2. Overruled.
3. Overruled.
4. Overruled.

McGehee Declaration:

5. Overruled.
6. Overruled.

Gelder Declaration:

7. Overruled.
8. Overruled.
9. Overruled.

2. 9:00 AM CASE NUMBER: C23-02761
CASE NAME: SUNPOINT PUBLIC ADJUSTERS, INC. VS. GARY JOHNSON
***HEARING ON MOTION IN RE: QUASH DEPOSITION SUBPOENAS**
FILED BY: JOHNSON, GARY
TENTATIVE RULING:

This hearing date should have been vacated by the Court’s Order dated 2/20/26 appointing a Discovery Referee in this matter.